

House File 874

H-1126

1 Amend House File 874 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 514C.3D Prior authorization for
5 dental care services.

6 1. *Definitions.* As used in this section unless the context
7 otherwise provides:

8 a. "*Commissioner*" means the commissioner of insurance.

9 b. "*Covered person*" means the same as defined in section
10 514C.3C.

11 c. "*Dental care provider*" means the same as defined in
12 section 514C.3C.

13 d. "*Dental care service plan*" means the same as defined in
14 section 514C.3C.

15 e. "*Dental care services*" means the same as defined in
16 section 514C.3C.

17 f. "*Dental carrier*" means the same as defined in section
18 514C.3C.

19 g. "*Prior authorization*" means a determination by a dental
20 carrier in response to a request submitted by a dental care
21 provider as to whether a specific dental care service proposed
22 by the dental care provider for a covered person will be
23 reimbursed at a specified amount, subject to any applicable
24 coinsurance or deductible required under the covered person's
25 dental care service plan.

26 2. *Prior authorization.*

27 a. A dental carrier shall not deny a claim submitted by a
28 dental care provider for dental care services approved by prior
29 authorization.

30 b. A dental carrier shall reimburse a dental care provider
31 at the contracted reimbursement rate for a dental care service
32 provided by the dental care provider to a covered person per
33 a prior authorization.

34 3. *Exceptions.* Subsection 2 shall not apply if any of the
35 following apply for each dental care service for which a dental

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1 care provider is denied reimbursement:

2 *a.* On the date that the dental care service was provided
3 by the dental care provider to the covered person per a
4 prior authorization, a benefit limitation including but not
5 limited to an annual maximum or a frequency limitation that
6 was not applicable at the time of the prior authorization had
7 been reached due to utilization of the dental care service
8 plan subsequent to the dental carrier issuing the prior
9 authorization.

10 *b.* The dental care provider submits a claim for dental care
11 services approved by prior authorization and the documentation
12 of dental care services fails to support the claim for
13 dental care services as originally authorized by the prior
14 authorization.

15 *c.* Subsequent to the issuance of a prior authorization, and
16 prior to the provision of dental care services authorized by
17 the prior authorization, a covered person receives additional
18 dental care services, or a change in the dental condition of
19 the covered person occurs, such that the dental care services
20 authorized by the prior authorization are no longer considered
21 medically necessary based on the prevailing standard of care.

22 *d.* Subsequent to the issuance of a prior authorization, and
23 prior to the provision of dental care services authorized by
24 the prior authorization, a covered person receives additional
25 dental care services, or a change in the dental condition
26 of the covered person occurs, such that on the date that
27 the dental care service is to be provided a request for
28 prior authorization of the dental care service would require
29 disapproval pursuant to the terms and conditions for coverage
30 under the covered person's current dental care service plan.

31 *e.* A payor other than the dental carrier is responsible for
32 payment for the dental care service.

33 *f.* A dental care provider has already received payment from
34 the dental carrier for the dental care services identified in
35 the claim for reimbursement.

1 *g.* The claim was submitted fraudulently to the dental
2 carrier.

3 *h.* The dental care provider, covered person, or other
4 person not related to the dental carrier provided inaccurate
5 information that the dental carrier relied on, in whole
6 or in part, for the dental carrier's prior authorization
7 determination.

8 *i.* On the date that the dental care service was provided by
9 the dental care provider to the covered person per the prior
10 authorization, the covered person was ineligible to receive the
11 dental care service and the dental carrier did not know, and
12 with the exercise of reasonable care could not have known, of
13 the covered person's ineligibility.

14 *j.* Prior to providing a dental care service approved by
15 prior authorization, the dental care provider terminated
16 participation in the dental carrier's network under which the
17 dental carrier issued the prior authorization for such dental
18 care service.

19 4. *Waiver prohibited.* The requirements of this section
20 shall not be waived by contract. Any contractual arrangement
21 contrary to this section shall be null and void.

22 5. *Rules.* The commissioner may adopt rules pursuant to
23 chapter 17A to administer this section.

24 Sec. 2. NEW SECTION. 514C.3E **State-regulated dental care**
25 **service plans.**

26 1. As used in this section, unless the context otherwise
27 provides:

28 *a.* "Commissioner" means the commissioner of insurance.

29 *b.* "Covered person" means the same as defined in section
30 514C.3C.

31 *c.* "Dental care provider" means the same as defined in
32 section 514C.3C.

33 *d.* "Dental care service plan" means the same as defined in
34 section 514C.3C.

35 *e.* "Dental carrier" means the same as defined in section

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1 514C.3C.

2 2. If a covered person's dental care service plan is subject
3 to the insurance laws and regulations of this state, or subject
4 to the jurisdiction of the commissioner, a dental carrier shall
5 do all of the following:

6 a. Disclose to a dental care provider through an online
7 dental care provider portal, or other easily accessible
8 means, that a covered person's dental care service plan is
9 state-regulated.

10 b. Include the statement "state-regulated" on an electronic
11 or physical identification card issued to a covered person on
12 or after July 1, 2025.

13 3. *Waiver prohibited.* The requirements of this section
14 shall not be waived by contract. Any contract contrary to this
15 section shall be null and void.

16 4. *Rules.* The commissioner may adopt rules pursuant to
17 chapter 17A to administer this section.

18 Sec. 3. NEW SECTION. 514C.3F **Dental carrier — recovery of**
19 **claim overpayment.**

20 1. *Definitions.* As used in this section, unless the context
21 otherwise provides:

22 a. "Dental care provider" means the same as defined in
23 section 514C.3C.

24 b. "Dental care services" means the same as defined in
25 section 514C.3C.

26 c. "Dental carrier" means the same as defined in section
27 514C.3C.

28 d. "Overpayment" means a payment made in error by a dental
29 carrier to a dental provider for a dental care service.

30 2. *Appeals.* A dental carrier shall establish written
31 policies and procedures for a dental care provider to appeal
32 an overpayment recovery or overpayment recovery request made
33 by the dental carrier. The dental carrier shall notify the
34 dental care provider of the policies and procedures to appeal
35 an overpayment recovery or overpayment recovery request at the

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1 time that the dental carrier makes the overpayment recovery or
2 overpayment recovery request. The policies and procedures must
3 allow a dental care provider to appeal an overpayment recovery
4 or overpayment recovery request within a minimum of ninety
5 calendar days after the dental care provider receives such
6 notice. The policies and procedures must allow the dental care
7 provider to access the claim information that is the subject of
8 the overpayment dispute.

9 3. *Notice.* A dental carrier shall not attempt to recover
10 an overpayment, in whole or in part, unless the dental
11 carrier provides written notice of the overpayment to the
12 dental care provider no later than three hundred sixty-five
13 calendar days after the date the dental care provider received
14 the overpayment. The written notice of overpayment must
15 identify the error made in the processing or payment of the
16 claim. The written notice must state a request for recovery
17 of the overpayment or notify the dental care provider of
18 withholding or reducing a payment as required in subsection
19 4. If a recovery attempt is made pursuant to subsection 4,
20 then the dental carrier shall be deemed to have met the notice
21 requirements of this subsection.

22 4. *Withholding or reducing payments.* A dental carrier may
23 attempt to recover an overpayment by withholding or reducing a
24 payment to a dental care provider for a different claim if the
25 dental carrier provides the dental care provider with written
26 notice within twenty-eight calendar days after the date of
27 withholding or reducing the payment for the other claim. The
28 notice must identify the original claim that was overpaid,
29 the amount being withheld or reduced for the overpayment and
30 recovery, and the payment from which such amount is being
31 withheld or reduced. A dental carrier may include the notice
32 required by this subsection as part of the notice required by
33 subsection 3.

34 5. *Applicability.* Subsections 3 and 4 shall not apply, and
35 a dental carrier shall be entitled to recover an overpayment,

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1 if the overpayment recovery efforts are based on a reasonable
2 belief of fraud, abuse, or other intentional misconduct.

3 6. *Waiver prohibited.* The requirements of this section
4 shall not be waived by contract. Any contract contrary to this
5 section shall be null and void.

6 7. *Rules.* The commissioner of insurance may adopt rules
7 pursuant to chapter 17A to administer this section.>

BOSSMAN of Woodbury